Federalist No. 51 & Brutus No. 1

Publius (James Madison) · February 6, 1788 & "Brutus" · October 18, 1787

Source: The Federalist No. 51 (Avalon Project, Yale Law School) and Brutus No. 1 (Teaching American History, modernized spelling). Public domain.

The fight over ratification was waged in the newspapers. Writing as "Brutus" in the New-York Journal on 18 October 1787, an Anti-Federalist warned that the Necessary and Proper and Supremacy Clauses would swallow the states whole, and that no free republic had ever governed a territory this vast. Four months later Publius answered in The Federalist No. 51: the danger is real, but the cure is structural — divide power between two governments and among three branches, so that ambition checks ambition. Together they pose the question this class turns on: did the Constitution create a limited federal government, or an unlimited national one?

Connect: Brutus wrote in October 1787, before any Bill of Rights existed. Which of his specific fears does the Bill of Rights (1791) answer — and which does it leave completely untouched?

Key Passages

Federalist No. 51 — ambition against ambition

> Ambition must be made to counteract ambition. … If men were angels, no government would be necessary. … you must first enable the government to control the governed; and in the next place oblige it to control itself.

Federalist No. 51 — the compound republic

> In the compound republic of America, the power surrendered by the people is first divided between two distinct governments, and then the portion allotted to each subdivided among distinct and separate departments. Hence a double security arises to the rights of the people. … If a majority be united by a common interest, the rights of the minority will be insecure. … the larger the society, provided it lie within a practical sphere, the more duly capable it will be of self-government.

Brutus No. 1 — consolidation by clause

> This government is to possess absolute and uncontrollable power, legislative, executive and judicial, with respect to every object to which it extends, … they may so exercise this power as entirely to annihilate all the state governments, and reduce this country to one single government.

Brutus No. 1 — the problem of extent

> a free republic cannot succeed over a country of such immense extent, containing such a number of inhabitants, and these increasing in such rapid progression as that of the whole United States. … in a republic of the extent of this continent, the people in general would be acquainted with very few of their rulers: … If then this new constitution is calculated to consolidate the thirteen states into one, as it evidently is, it ought not to be adopted.

HIPP Analysis

Model answers fill the first three rows. Use them to explain the author's Purpose in the last row.

HIPP Element	Your Analysis
Historical Situation *What was happening when this was written?*	The ratification debate (1787-88): the Constitution had been sent to the states, and Federalists and Anti-Federalists argued over it in newspapers, especially in New York.
Intended Audience *Who was the source written for?*	Voters and delegates in New York who would decide whether to ratify the Constitution; both essays ran in New York newspapers.

HIPP Element	Your Analysis
Point of View *Whose perspective? Whose is missing?*	Federalist 51: James Madison, a key framer who wanted a strong national government held in check. Brutus 1: an Anti-Federalist (probably Robert Yates) who feared central power.
Purpose *What did the author want to accomplish?*	

Analysis Prompts

1. SAQ (A·C·E): Briefly explain ONE difference between Publius and Brutus over whether the proposed Constitution would leave the state governments any meaningful power. Answer the question directly, Cite one specific line from each document, and Explain how those lines support your answer.
2. Both writers claim to be defending liberty, but they fear different things — Publius fears an unjust majority, Brutus fears a distant central government. Whose fear does the Constitution as ratified take more seriously, and how can you tell from its structure?
3. Brutus argues that a republic cannot work across a territory this large; Publius argues in the same essay that a larger society is more capable of self-government. Which argument does the period from 1788 to 1861 support? Defend your answer with specific evidence.